

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Edison	Team: Squad #06	CCRB Case #: 202203710	☒ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 06/08/2022 11:00 PM, Thursday, 09/01/2022 12:00 AM	Location of Incident: East 167th Street and Walton Avenue	18 Mo. SOL 12/8/2023	Precinct: 44		
Date/Time CV Reported Thu, 06/09/2022 12:41 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 06/09/2022 12:41 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Brendan Reilly	05388	952155	PBBX SU PST
2. Officers			
3. PO Kieran Brennan	30990	965958	PBBX SU PST
4. PO Paul Kelly	03683	959726	WARRSEC
5. PO George Layng	15804	966663	044 PCT
6. PO Benito Cruz	01486	956557	PBBX SU PST

Officer(s)	Allegation	Inv. Div. Recommendation
A . Officers	Abuse: On June 8, 2022, Officers stopped the vehicle in which § 87(2)(b) was an occupant.	A . Within NYPD Guidelines
B . PO Kieran Brennan	Force: On June 8, 2022, Police Officer Kieran Brennan used physical force against § 87(2)(b)	B . Miscellaneous - Subject Resigned
C . PO Kieran Brennan	Abuse: On June 8, 2022, Police Officer Kieran Brennan frisked § 87(2)(b)	C . Miscellaneous - Subject Resigned
D . PO Kieran Brennan	Abuse: On June 8, 2022, Police Officer Kieran Brennan searched the vehicle in which § 87(2)(b) was an occupant.	D . Miscellaneous - Subject Resigned
E . PO Benito Cruz	Abuse: On June 8, 2022, Police Officer Benito Cruz frisked § 87(2)(b) bag.	E . Substantiated
F . PO Benito Cruz	Abuse: On June 8, 2022, Police Officer Benito Cruz searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . PO Kieran Brennan	Force: On June 8, 2022, Police Officer Kieran Brennan used physical force against § 87(2)(b)	G . Miscellaneous - Subject Resigned
H . PO Kieran Brennan	Abuse: On June 8, 2022, Police Officer Kieran Brennan refused to provide his shield number to § 87(2)(b)	H . Miscellaneous - Subject Resigned
I . PO Kieran Brennan	Abuse: On June 8, 2022, Police Officer Kieran Brennan refused to provide his name to § 87(2)(b)	I . Miscellaneous - Subject Resigned
J . SGT Brendan Reilly	Abuse: On June 8, 2022, Sergeant Brendan Reilly failed to provide § 87(2)(b) with a business card.	J . Within NYPD Guidelines
K . PO Paul Kelly	Abuse: On June 8, 2022, Police Officer Paul Kelly refused to provide his shield number to § 87(2)(b)	K . Substantiated
L . PO Paul Kelly	Abuse: On June 8, 2022, Police Officer Paul Kelly refused to provide his name to § 87(2)(b)	L . Substantiated
M . PO George Layng	Abuse: On June 8, 2022, Police Officer George Layng refused to provide his shield number to § 87(2)(b)	M . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
N . PO George Layng	Abuse: On June 8, 2022, Police Officer George Layng refused to provide his name to § 87(2)(b)	N . Substantiated
O . PO Benito Cruz	Abuse: On June 8, 2022, Police Officer Benito Cruz refused to provide his shield number to § 87(2)(b)	O . Substantiated
P . PO Benito Cruz	Abuse: On June 8, 2022, Police Officer Benito Cruz refused to provide his name to § 87(2)(b)	P . Substantiated
Q . PO Benito Cruz	Untruthful Stmt.: On September 1, 2022, Police Officer Benito Cruz provided a misleading official statement to the CCRB.	Q . Substantiated
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On June 9, 2022, § 87(2)(b) submitted this complaint to the CCRB via the Call Processing System.

On June 8, 2022, at approximately 11:00 p.m., PO Kieran Brennan, PO Benito Cruz, and PO George Layng of Patrol Borough Bronx (PBBX) Public Safety stopped an Uber cab seat between East 167th Street and Walton Avenue in the Bronx, driven by § 87(2)(b) that had § 87(2)(b) as a passenger in the rear (**Allegation A: Abuse of Authority, Within NYPD Guidelines**). Sgt. Brendan Reilly and PO Paul Kelly of PBBX Public Safety served as backup stop and exercised no decision-making authority over the initial vehicle stop.

§ 87(2)(b) refused PO Brennan's request for him to step out of the vehicle, and PO Brennan pulled § 87(2)(b) out of the vehicle by his arms and frisked him (**Allegation B: Force and C: Abuse of Authority, Miscellaneous Subject resigned**). PO Brennan and PO Cruz searched the backseat area of the vehicle, and PO Cruz frisked the outside of § 87(2)(b) bag that was located in the middle of the backseat (**Allegation D: Abuse of Authority, Miscellaneous Subject resigned; and Allegations E and F: Abuse of Authority, substantiated**). After completing the search, PO Brennan allegedly placed his hands on § 87(2)(b) chest and pushed him back into towards the backseat of the vehicle (**Allegation G: Force, Miscellaneous Subject resigned**).

§ 87(2)(b) asked for the names and shield numbers off all five officers, and Sgt. Reilly provided his own information to § 87(2)(b) in writing. None of the remaining officers provided their names or shield numbers as requested (**Allegations H and I: Abuse of Authority, Miscellaneous Subject resigned; and Allegations K, L, M, N, O, P: Abuse of Authority, substantiated**). Sgt. Reilly failed to provide § 87(2)(b) with a business card because he did not have any on his person (**Allegation J: Abuse of Authority, Within NYPD Guidelines**).

PO Cruz provided a misleading official statement to the CCRB (**Allegation Q: Untruthful Statement, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

BWC of the incident was obtained and is located in IAs 78-79 and 81-82 (BR 01-04). No arrests or summonses were issued.

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers stopped the vehicle in which § 87(2)(b) was an occupant.

PO Brennan's BWC (BR 01), beginning at the 1:12 minute mark, showed PO Brennan ask § 87(2)(b) "Is there any reason you aren't wearing a seatbelt?" § 87(2)(b) asked if he was required to wear a seatbelt, and PO Brennan replied, "Yeah, even in the back."

PO Cruz's BWC (BR 02), beginning at the 1:05 minute mark, showed PO Cruz tell § 87(2)(b) "Yeah, we're stopping you because your passenger doesn't have a seatbelt on."

§ 87(2)(b) testified (BR 05) that at approximately, 11:00 p.m., on June 8, 2022, he was going home from work in an Uber that was stopped at a red light on East 167th Street and Grand Concourse in the Bronx. § 87(2)(b) looked out of the right window and noticed a black ford NYPD vehicle parked on the side of the street. § 87(2)(b) briefly made eye contact with the driver, PO Cruz, for less than five seconds. A few seconds after the Uber began driving again, § 87(2)(b) heard the NYPD vehicle

turn on the lights and sirens, and they pulled the Uber over on East 167th Street.

PO Brennan testified (BR 06) that he was conducting patrol for Public Safety assignment in the confines of the 40th Precinct with PO Cruz and PO Layng. The officers drove past a black sedan on 167th and Walton Avenue, and PO Brennan noticed that the backseat passenger, § 87(2)(b) was not wearing a seatbelt. PO Brennan was able to clearly see § 87(2)(b) through the Uber's rear side window. They turned on the lights and sirens and pulled the Uber over to the side of the road, but PO Brennan did not remember which officer made the decision to initiate the vehicle stop. PO Brennan clarified that the only reason for the vehicle stop was because of the seatbelt infraction committed by § 87(2)(b).

PO Cruz's testimony (BR 07) and PO Layng's testimony (BR 08) were largely consistent with PO Brennan's testimony, with no notable exceptions.

No person over the age of 16 shall be a passenger in a taxi or livery unless such person is restrained by a safety belt approved by the commissioner, NY CLS Vehicle and Traffic Law § 1229-c (BR 11).

It is undisputed that § 87(2)(b) was not wearing a seatbelt as a passenger in the back seat of an Uber. BWC confirms that PO Brennan informed § 87(2)(b) that the reason for the stop was because he was not wearing a seatbelt. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Within NYPD Guidelines**.

Allegation (B) Force: Police Officer Kieran Brennan used physical force against § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Kieran Brennan frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Kieran Brennan searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (E) Abuse of Authority: Police Officer Benito Cruz frisked § 87(2)(b) bag.

Allegation (F) Abuse of Authority: Police Officer Benito Cruz searched the vehicle in which § 87(2)(b) was an occupant.

PO Brennan's BWC (BR 01), beginning at the 1:23 minute mark, showed him ask § 87(2)(b) to see a form of ID. § 87(2)(b) replied that he did not have his ID on him because he was on his way home after doing a double shift for his job as a doorman. At the 1:45 minute mark, PO Brennan asked § 87(2)(b) "Why did you duck down when we were walking up?" § 87(2)(b) replied, "I looked at y'all, y'all was looking at me. I'm in an Uber, bro." At the 2:00 minute mark, PO Brennan asked § 87(2)(b) for his name, and § 87(2)(b) only provided his first name. At the 2:50 minute mark PO Brennan told § 87(2)(b) to step out of the vehicle, and § 87(2)(b) replied that he did not want to step out. PO Brennan opened the rear passenger door and pulled § 87(2)(b) out of the vehicle by the wrists. At the 3:15 minute mark, PO Brennan frisked § 87(2)(b) waist area, his shorts' pockets, and the inside seam of his shorts. The entire frisk lasted approximately ten seconds. At the 3:25 minute mark § 87(2)(b) walked to the back of the vehicle, and PO Cruz leaned into the back seat of the vehicle driver side rear door. PO Cruz shined his flashlight on the back seat floor area and lifted up the floor mat for a few seconds. At the 3:35 minute mark, PO Brennan appeared to be feeling around with his hand underneath the passenger side back seat where § 87(2)(b) had been located. At the 3:45 minute mark, PO Brennan came back out of the vehicle, and then shone his flashlight on the back seat and felt inside the seat track area.

PO Layng's BWC (BR 03), beginning at the 1:00 minute mark, showed him, PO Cruz, and PO Brennan all exit their vehicle and approach the Uber with their flashlights on. As PO Layng approached the vehicle behind PO Cruz and PO Brennan, PO Layng said, "He put something down

possibly.” PO Layng’s BWC, from the 3:30 minute mark until the 4:00 minute mark, showed PO Brennan and PO Cruz enter the vehicle through the back seat doors and shine their flashlights around the inside of the vehicle.

PO Cruz’s BWC (BR 02), beginning at the 3:00 minute mark, showed him open the rear driver side door, lean inside, and ask § 87(2)(b) to step out of the vehicle. At the 3:10 minute mark, PO Cruz appeared to shine his flashlight onto a blue bag that was sitting in the back seat. At the 3:15 minute mark, PO Cruz frisked the outside of it for approximately five seconds and then shined his flashlight inside of the bag from the opening at the top. At the 3:20 minute mark, PO Cruz leaned all the way into the back of the vehicle, but his BWC did not capture what he was doing. At the 3:40 minute mark, PO Cruz backed up to shine his flashlight at the backseat floor area, and PO Brennan lifted the floor mat located on the rear passenger side. At the 3:45 minute mark, PO Cruz leaned back into the vehicle and pointed his flashlight in the vicinity of the floor underneath the front passenger seat. He told PO Brennan, “Check again over there because that’s where he dipped down. Check on the side of the door right here.” PO Brennan shone his flashlight underneath the front passenger seat and looked around the area.

§ 87(2)(b) testified (BR 05) that after PO Brennan told § 87(2)(b) that he was stopped for not wearing a seatbelt and for potentially throwing a weapon under the passenger seat, § 87(2)(b) explained that he was on his way home from working as a doorman and did not have gun. PO Brennan asked § 87(2)(b) to step out of the vehicle, but § 87(2)(b) refused. PO Brennan opened the rear passenger side door, grabbed both of § 87(2)(b) wrists, and pulled him out of the vehicle. § 87(2)(b) stood outside and faced the vehicle. PO Brennan frisked § 87(2)(b) pants, waist, and genital area for approximately ten seconds. While he was being frisked, § 87(2)(b) noticed two or three officers standing behind PO Brennan, but PO Brennan was the only officer who frisked him. After being frisked, § 87(2)(b) was told to turn around with his back to the Uber, and he spoke to an officer for approximately two minutes.

§ 87(2)(b) testified (BR 12) that he observed the officers speaking to § 87(2)(b) outside of the vehicle, and he heard them say something along the lines of that they saw § 87(2)(b) throw something under one of the seats. Two officers opened the backseat doors and searched the vehicle. § 87(2)(b) did not remember if the officers asked for his consent before searching the vehicle, but he never gave them consent to do so.

PO Brennan testified (BR 06) that as the Uber was pulling over to the side of the road, he observed § 87(2)(b) look back at the officers multiple times through the rearview window. These movements were frantic because § 87(2)(b) looked back repeatedly within a few seconds. As he approached the Uber, PO Brennan observed § 87(2)(b) dip his shoulder down towards the floor. PO Brennan could only see the top of § 87(2)(b) shoulders, but § 87(2)(b) never fully went out of PO Brennan’s view when he dipped. § 87(2)(b) hands were not visible at any point, but his prior movements suggested that he was potentially concealing or reaching for something on the floor of the vehicle. At the passenger side window, PO Brennan shined his flashlight inside the vehicle and observed that the floor mat by § 87(2)(b) feet appeared to be disheveled or disturbed in such a way that looked like it had recently been moved around. As PO Brennan explained to § 87(2)(b) that they stopped § 87(2)(b) for not wearing a seatbelt, § 87(2)(b) unprompted, reached for a blue shopping bag, located to his left on the middle seat. PO Brennan asked him for ID, but § 87(2)(b) replied that he did not have it with him. PO Brennan asked for his name verbally instead, but § 87(2)(b) only provided his first name, which was § 87(2)(b). PO Brennan asked for his last name, but § 87(2)(b) did not respond. At that point, the totality of the circumstances led PO Brennan to believe that there was potentially a weapon in the vehicle, and he made the decision to have § 87(2)(b) step out of the vehicle for everyone’s safety. Prior to having § 87(2)(b) step out of the vehicle, he observed an object in § 87(2)(b) left pants pocket. However, as PO Brennan did not get a good look at the object while § 87(2)(b)

§ 87(2)(b) was sitting down this did not factor into his decision to have § 87(2)(b) step out of the vehicle. § 87(2)(b) refused the initial request to step out of the vehicle, and PO Brennan opened the car door and placed his hands on § 87(2)(b) wrists to help him out. As § 87(2)(b) began to stand up outside, PO Brennan was able to see the bulge in his shorts and described it as a large boxy object with long straight edges similar to the shape of a gun. PO Brennan decided to frisk § 87(2)(b) to check for weapons but determined the bulge in his pocket was a phone. After frisking § 87(2)(b) PO Brennan checked the grabbable area inside the vehicle: the back seat cushions, the floor underneath the passenger seat, and underneath the floor mat where § 87(2)(b) feet had been located. PO Cruz also looked inside the vehicle, but PO Brennan did not know what areas he covered or if PO Cruz checked § 87(2)(b) bag located on one of the back seats. No one instructed PO Brennan to search the vehicle and this decision was based on the dipping down motion which led him to believe that he was hiding or retrieving a weapon.

PO Cruz's testimony (BR 07) was largely consistent with PO Brennan's testimony, with the following exceptions. PO Cruz lost sight of § 87(2)(b) through the rearview window for a few seconds when he dipped down. PO Cruz spoke with the Uber driver, § 87(2)(b) while PO Brennan spoke with § 87(2)(b) on the opposite side of the vehicle. PO Cruz did not know what was said between § 87(2)(b) and PO Brennan, but § 87(2)(b) demeanor was annoyed. PO Cruz did not observe any movements from § 87(2)(b) inside the vehicle during the initial interaction. PO Cruz observed a large bulge in § 87(2)(b) left pocket, which further raised his suspicions that § 87(2)(b) could be concealing a weapon. PO Cruz also observed an open bag in the back seat with a pair of boots inside it, but he did not see § 87(2)(b) reach for the bag or observe anything that indicated there was a weapon inside the bag. PO Cruz did not observe anything else inside the vehicle that raised his suspicions that § 87(2)(b) had concealed a weapon inside the vehicle. As PO Brennan frisked § 87(2)(b) PO Cruz decided to conduct a limited search of the vehicle based on § 87(2)(b) movements that he observed throughout the incident. PO Cruz made the decision to search the vehicle on his own. PO Cruz entered the vehicle and checked around the floor area where the bag was located because he thought it was possible that § 87(2)(b) had concealed a weapon in that area before the officers had approached the vehicle. PO Cruz then shined his flashlight into § 87(2)(b) bag to look inside it, and he frisked the outside of the bag to check for any objects that felt like weapons. He did not search other areas of the vehicle.

PO Layng's testimony (BR 08) was largely consistent with PO Brennan and PO Cruz's testimony, with the following exceptions. As PO Brennan spoke with § 87(2)(b) PO Layng stood by the back of the vehicle on the driver side and had his flashlight shining into the backseat area through the side and rearview window. PO Layng did not notice anything out of the ordinary inside the backseat area. PO Layng did not know why PO Brennan decided to frisk § 87(2)(b) and he never learned the reasons after the incident ended. After § 87(2)(b) was done being frisked, PO Brennan and PO Cruz searched the back seat area of the vehicle for approximately 20 seconds, but PO Layng did not know the specific areas that were searched.

Sgt. Reilly testified (BR 09) that he observed an officer remove § 87(2)(b) from the vehicle and frisk him, but he did not remember which officer. At that point, Sgt. Reilly spoke to the § 87(2)(b) He did not know why one of the officers decided to frisk § 87(2)(b) Sgt. Reilly relied on the other officers' judgement to determine what was needed because they had more information about the situation. Sgt. Reilly did not observe any movements from § 87(2)(b) as the officers approached the vehicle, he did not observe any bulge in § 87(2)(b) pockets, and he did not get a good look inside the backseat of the vehicle at any point. While Sgt Reilly spoke to § 87(2)(b) at the back of the vehicle, two officers entered the Uber through the back seat doors, but Sgt. Reilly did not know which officers it was or what they did inside the vehicle.

PO Kelly's testimony (BR 10) was largely consistent with Sgt. Reilly's testimony with the following exception. PO Kelly confirmed that PO Brennan was the officer who frisked § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations B, C, and D** be closed as **miscellaneous – subject resigned**.

An officer cannot "frisk" a bag or item of personal property unless the officer has reasonable suspicion that the person is armed and dangerous and the bag or item could contain a weapon and is within the person's reach, Patrol Guide Procedure 212-11 (BR 14). The court held that absent an arrest, officers acting on reasonable suspicion may only intrude upon an individual's personal effects to the extent that it actually necessary to protect themselves from harm during an investigative encounter. In that case, the court found that it was unlawful for the officers to frisk the outside of a bag located inside the vehicle after the individuals had already been frisked and detained outside of the vehicle because any potential weapons in the bag posed no immediate threat to their safety People v. Torres, 74 N.Y.2d 224 (1989) (BR 15).

PO Cruz testified that he frisked the outside of § 87(2)(b) bag to ensure the safety of himself and his fellow officers. § 87(2)(g)

it is therefore recommended that **Allegation E** be closed as **substantiated**.

The court held that officers must have founded suspicion that there was a weapon inside the vehicle based on "persistent movements" and "repeated looking into the back seat" in order to conduct a "very limited search" of a specific area People v. Hardee, 126 A.D. 3d 626 (2015) (BR 16). The court held that a passenger nervously looking over their shoulder as an officer approach does not yield suspicion of criminality People v. Garcia, 20 N.Y. 3d 317 (2012) (BR 17). The court ruled that the observation of a driver making a single downward motion with his hand as he was being pulled over by officers coupled with it being in a "high crime location" was insufficient to warrant a search of the vehicle People v. McCready, 504 N.Y.S.2d 125 (1986) (BR 18).

PO Cruz testified that he searched the vehicle due to his observations that § 87(2)(b) "dipped" forward and repeatedly looked back at the officers when the police vehicle first activated the lights. PO Cruz observed no other furtive movements, and he clarified that he did not observe § 87(2)(b) do anything when he "dipped" forward. § 87(2)(g)

BWC confirms that he had no verbal communication with PO Brennan about any observations he had made during the stop.

it is recommended that Allegation F be substantiated.

Allegation (G) Force: Police Officer Kieran Brennan used physical force against § 87(2)(b).

Allegation (H) Abuse of Authority: Police Officer Kieran Brennan refused to provide his shield number to § 87(2)(b).

Allegation (I) Abuse of Authority: Police Officer Kieran Brennan refused to provide his name to § 87(2)(b).

Allegation (J) Abuse of Authority: Sergeant Brendan Reilly failed to provide § 87(2)(b) with a business card.

Allegation (K) Abuse of Authority: Police Officer Paul Kelly refused to provide his shield number to § 87(2)(b).

Allegation (L) Abuse of Authority: Police Officer Paul Kelly refused to provide his name to § 87(2)(b).

Allegation (M) Abuse of Authority: Police Officer George Layng refused to provide his shield number to § 87(2)(b).

Allegation (N) Abuse of Authority: Police Officer George Layng refused to provide his name to § 87(2)(b).

Allegation (O) Abuse of Authority: Police Officer Benito Cruz refused to provide his shield number to § 87(2)(b).

Allegation (P) Abuse of Authority: Police Officer Benito Cruz refused to provide his name to § 87(2)(b).

PO Cruz's BWC (BR 02), beginning at the 4:25 minute mark, showed § 87(2)(b) ask the officers "Can I get y'all numbers?" PO Cruz replied, "Yeah of course, just get back in the car." At the 4:30 minute mark, § 87(2)(b) asked again, "Can y'all write your names, y'all numbers." At the 5:19 minute mark, Sgt. Reilly spoke to § 87(2)(b) at the rear passenger window, PO Cruz was standing on the far side behind the vehicle, and the other officers were standing in the back of the vehicle behind Sgt. Reilly. At the 6:17 minute mark, PO Cruz began to walk away and said, "business card was given."

Sgt. Reilly's BWC (BR 04), beginning at the 4:25 minute mark, showed Sgt. Reilly, after § 87(2)(b) asked for the officer's name and shield numbers the first time, tell § 87(2)(b) "We'll give you everything you need." At the 4:33 minute mark, Sgt. Reilly replied, "I'm going to give you mine, okay?" At the 5:10 minute mark, Sgt. Reilly handed § 87(2)(b) a piece of paper and explained that he was the supervisor on scene. At the 5:15 minute mark, Sgt. Reilly told § 87(2)(b) that he wrote down his information on the paper because he does not have any business cards and needs to order new ones. At the 6:00 minute mark, Sgt. Reilly explained what precinct the officers were from, and he provided his name and shield number verbally to § 87(2)(b). At the 6:25 minute mark, Sgt. Reilly apologized to § 87(2)(b) for the inconvenience and walked away from the vehicle with the other officers.

§ 87(2)(b) testified (BR 05) that after waiting behind the vehicle for a few minutes, PO Brennan started pushing him in the chest towards the back seat of the vehicle. § 87(2)(b) told PO Brennan to stop touching him and asked for all the officers' shield numbers. PO Brennan told § 87(2)(b) to get in the vehicle and continued pushing him, but Sgt. Reilly intervened and asked § 87(2)(b) to get back in the vehicle. § 87(2)(b) complied, and PO Brennan walked away without providing his name or shield number. § 87(2)(b) then asked Sgt. Reilly for his shield number and business card, and Sgt. Reilly replied that he needed to get more business cards from his office. Instead, Sgt. Reilly wrote down his name and shield number on a piece of paper and provided it to § 87(2)(b). Sgt. Reilly

apologized for thinking he had a gun, and he walked away with the other officers. None of the other officers provided their names and shield numbers to § 87(2)(b) and Sgt. Reilly did not provide it for them.

PO Cruz (BR 07) testified that as the officers attempted to place § 87(2)(b) back in the vehicle at the end of the stop, he asked the officers for their names and shield numbers. Sgt. Reilly intervened and told § 87(2)(b) that he needed to go back into the vehicle before he was provided with that information. § 87(2)(b) complied, and Sgt. Reilly went up to the back seat window and handed § 87(2)(b) a piece of paper. Sgt. Reilly then told the officers to go back to their vehicles because the interaction was complete. PO Cruz did not personally provide his name and shield number to § 87(2)(b) because he believed that Sgt. Reilly had provided the information for all the officers on the piece of paper. PO Cruz explained that their unit had a routine with Sgt. Reilly where he would provide the names and shield numbers for all the officers present on scene when a civilian requested it. PO Cruz had participated in this routine since he first began working with Sgt. Reilly at Bronx Public Safety in March of 2021. Sgt. Reilly never told him that he was going to provide all the information during the incident, and he did not confirm it with Sgt. Reilly afterwards. PO Cruz did not provide a business card because § 87(2)(b) only asked for the names and shield numbers.

PO Brennan (BR 06) testified that after he completed his search of the vehicle, he had to ask § 87(2)(b) approximately 10 times to get back into the back seat before he complied. Sgt. Reilly approached the rear passenger window and handed a piece of paper to § 87(2)(b). PO Brennan did not see what was written on the piece of paper, but he assumed it included Sgt. Reilly's name and shield number. PO Brennan did not provide his name and shield number to § 87(2)(b) because he did not hear § 87(2)(b) ask him for that information. PO Brennan did not know if § 87(2)(b) asked other officers for their name or shield number, and he did not know if other officers provided it to him.

PO Layng (BR 08) testified he did not provide his name and shield number to § 87(2)(b) because § 87(2)(b) was already back inside the vehicle and speaking with Sgt. Reilly. During his time working with Sgt. Reilly at Patrol Borough Bronx Public Safety, PO Layng was not aware of any procedure or informal policy where Sgt. Reilly would provide the names and shield numbers of all the officers present for a vehicle stop when a civilian requested that information. PO Layng had no recollection of Sgt. Reilly doing that in any past situation.

PO Kelly (BR 10) testified that he did not think he needed to provide his name and shield number verbally because § 87(2)(b) did not ask for more information after receiving Sgt. Reilly's information. PO Kelly was not aware of any informal policy of procedure where Sgt. Reilly would provide the names and shield numbers for all the officers present for a vehicle stop when the civilian requested that information. PO Kelly clarified that every vehicle stop was different and that every situation was fluid and required a different approach.

Sgt. Reilly (BR 09) testified that he wrote down his name, shield number, and command on a piece of paper and provided it to § 87(2)(b) once he was back inside the vehicle. Sgt. Reilly did not provide § 87(2)(b) with a business card because he did not have any on him and needed to order new ones. At that point, the other officers had already begun walking back to their own vehicles, and Sgt. Reilly did not observe any of them provide their names or shield numbers to § 87(2)(b). Sgt. Reilly did not provide the names or shield numbers of the other officers to § 87(2)(b) because he was the supervisor on scene, and they were in the middle of a busy street with heavy traffic flow. Sgt. Reilly did not tell any of the officers that he would provide their information to § 87(2)(b) on their behalf. Sgt. Reilly clarified that although he routinely conducted public safety patrol with PO Cruz and PO Brennan, he did not have any sort of informal procedure or policy in place where he would provide the names and shield numbers of all the officers present for a vehicle stop when the

civilian

requested that information. Sgt. Reilly did not have any one specific procedure for a vehicle stop because every situation was different.

§ 87(2)(g)

It is therefore recommended that **Allegations G, H, and I** be closed as **miscellaneous – subject resigned**.

Officers are required to state courteously and clearly their rank, name, shield number, and command, or otherwise provide them, to anyone who requests it, Administrative Guide 304-11 (BR 19). When officers do not have an adequate number of pre-printed or hand-written business cards on their person, they are required to provide such information verbally and allow sufficient time for such information to be recorded, New York City Administrative Code § 14-174 (BR 20).

It is undisputed that Sgt. Reilly provided his name, rank, shield number, and command to § 87(2)(b) in lieu of providing a business card. It is also undisputed that Sgt. Reilly explained that he was out of business cards at the moment and needed to order new ones. § 87(2)(g)

it is recommended that **Allegation J** be closed as **within NYPD guidelines**.

It is undisputed that neither PO Layng nor PO Kelly provided their names and shield numbers to § 87(2)(b) when he verbally requested it. PO Layng testified that he did not provide it because § 87(2)(b) was already speaking with Sgt. Reilly, and PO Kelly testified that he did not provide because § 87(2)(b) did not make the request again after speaking with Sgt. Reilly. § 87(2)(g)

it is recommended that **Allegations K, L, M, and N** be closed as **substantiated**.

PO Cruz testified that he did not provide his name and shield number to § 87(2)(b) because he believed Sgt. Reilly had provided the information on his behalf. Although PO Cruz did not see Sgt. Reilly provide every officers' information or confirm that it was provided, PO Cruz believed that was what occurred based on his prior experience with Sgt. Reilly in similar situations during vehicle stops. Both Sgt. Reilly and § 87(2)(b) confirmed that PO Cruz's information was not provided on the piece of paper Sgt. Reilly gave to § 87(2)(b) and Sgt. Reilly never implied or directly told PO Cruz that he would provide his information on his behalf. § 87(2)(g)

it is therefore recommended that **Allegations O and P** be closed as **substantiated**.

Allegation (Q) Untruthful Statement: Police Officer Benito Cruz provided a misleading official statement to the CCRB.

PO Cruz provided contradictory testimony in his CCRB interview to the testimony provided by Sgt. Reilly, PO Brennan, PO Layng, and PO Kelly during their CCRB interviews regarding the incident.

At the 8:40 minute mark of his CCRB Interview (BR 07), PO Cruz stated the following:

§ 87(2)(b) did state he wanted our name and shield and stuff. At which point [Sgt. Reilly] who was there intervened. We wanted to make sure that he was back in the vehicle, back in a controlled environment before we proceed to give our information. I knew my sergeant was going to take care of that, as he always does. We have this routine and standard with [Sgt. Reilly] that whenever that occurs, since he is the ranking officer, he usually takes over and gives all our names and shields to whoever wants it.

PO Cruz further clarified his testimony during the following verbatim exchange between the 50:30 minute to 51:50 minute mark of his CCRB Interview:

Inv. DiFiore: I know you said that you have this kind of understanding with your sergeant that he'll step in and provide the names and shield numbers. Can you describe under what circumstances your sergeant does that?

PO Cruz: My sergeant does that when names and shields are requested.

Inv DiFiore: Okay, so anytime someone says, 'I want all your names and shields numbers,' your sergeant will just say 'I'll do it myself,' and gives them all to him.

PO Cruz: Yes.

PBA Rep: And it's your standard practice?

PO Cruz: For us, yes.

Inv DiFiore: Have you previously given your shield number to your sergeant so that he knows it for when this situation happens.

PO Cruz: Our sergeant, he's in charge of us so he knows all our shields, names, numbers, and he has all that information.

Inv DiFiore: Do you know how long you've had that practice in your unit?

PO Cruz: Since we've been working together.

Inv DiFiore: And how long have you been in his unit?

PO Cruz: I've been in the unit since March of 2021. He's been in the unit since sometimes last year. I don't recall what time he came, but he's been in the unit for a while now.

Sgt. Reilly, PO Brennan, PO Layng, and PO Kelly were all asked about the "routine and standard" for their unit described by PO Cruz.

At the 25:45 minute mark of Sgt. Reilly's CCRB interview (BR 09), Inv. Edison asked, "Do you specifically have a system in place where when multiple officers' information is requested during a car stop, you provide all the officers' information for them instead?" Sgt. Reilly replied, "No, there's no system. Every situation is a different living, breathing situation that flows as it flows."

At the 1:04:10 minute mark of his CCRB Interview (BR 06), PO Brennan was asked about the routine his Public Safety unit had when their names and shield numbers were requested by a civilian, and PO Brennan stated, "I would say standard, normal I'd have a business card. We'd all have business cards. That would be the normal way."

At the 25:05 minute mark of his CCRB Interview (BR 08), PO Layng stated that he did not know of any informal policy with Sgt. Reilly for providing names and shield numbers, and he did not recall Sgt. Reilly ever providing the names and shield numbers for all the officers present at a vehicle stop when requested by a civilian.

At the 33:35 minute mark of his CCRB Interview (BR 10), PO Kelly was asked about the standard practice described by PO Cruz when working with Sgt. Reilly, and PO Kelly stated, "No, every situation is fluid."

A misleading statement is a statement intended to misdirect the fact finder and materially alter the narrative by intentionally omitting a material fact or facts, or by altering or changing a prior

statement or account when confronted with independent evidence indicating that an event did not occur as initially described. A material fact is a significant fact that is essential to the determination of the issue, and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome, Administrative Guide 304-10 (BR 21).

PO Cruz testified that the reason he did not provide his name and shield number when requested by § 87(2)(b) was because Sgt. Reilly had a “routine and standard” where he would provide that information for all the officers present when requested. When asked about this routine, Sgt. Reilly denied its existence and testified that every situation requires a unique approach. Additionally, PO Brennan, PO Layng, and PO Kelly all echoed similar sentiments in denying the existence of this routine performed by Sgt. Reilly. The existence of this routine is a material fact, § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegation Q** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 23).
- PO Cruz has been a member of service for eight years and has been a subject in five CCRB complaints and 21 allegations, of which four have been substantiated (BR 24):
 - 201806550 involved substantiated allegations of physical force, discourtesy,

offensive language (gender), and offensive language (race). The board recommended termination and the NYPD imposed 365 days dismissal probation, 30 days suspension, and 45 vacation days forfeited.

- In CCRB case 202204225, PO Cruz is a subject in allegations of a vehicle search where an Uber was stopped for back seat passengers not wearing a seat belt. The victims in both 202204225 and the case at hand are men of color, and the searches were justified by testimony from PO Cruz stating that the victims made a “dipping” down motion as the officers approached the Uber.
- Sgt. Reilly has been a member of service for 11 years and has been a subject in six CCRB complaints and 11 allegations, of which two have been substantiated (BR 25):
 - 201311318 involved substantiated allegations of question and frisk. The board recommended and the NYPD imposed Formalized Training.
- PO Kelly has been a member of service for seven years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated (BR 26).
- PO Layng has been a member of service for four years and has been involved in 4 cases and 11 allegations, of which eight have been substantiated (BR 27):
 - 202000753 involved a substantiated allegation of refusal to process a civilian complaint. The board recommended Command Discipline A, and the NYPD imposed no disciplinary action.
 - 202008106 involve substantiated allegations of discourtesy, offensive language (gender), and offensive language (race). The board recommended charges and an APU trial date is still pending.
 - 202105545 involved substantiated allegations of stop and failure to provide RTKA card. The board recommended Command Discipline B, and the NYPD has not yet imposed discipline.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- As of November 22, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (BR 28).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 6

Investigator:	<u>Samuel Edison</u>	<u>Investigator Edison</u>	<u>2/9/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>2/14/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u> </u>	<u> </u>	<u> </u>
	Signature	Print Title & Name	Date